

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, August 14, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-00532	Paulina Cardenas, et al. vs Select Harvest USA, LLC
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Motion for Preliminary Approval of Class Action and PAGA Settlement

The unopposed motion for preliminary approval of class action and PAGA settlement is DENIED WITHOUT PREJUDICE.

The Court has reviewed the motion and accompanying declarations and finds that the majority of the settlement terms are fair and reasonable under the particular circumstances of this case, and conditional certification of the class is appropriate.

However, there are three issues that need to be addressed prior to approval.

First, Plaintiffs request up to \$15,000 for the administration fee. This amount is not supported by way of declaration or exhibits. There is no declaration or other evidence of the cost of administration from Apex Class Action, LLC supporting the requested amount.

Second, there are no declarations from the representative plaintiffs that support the requested enhancement payments. Counsel's declaration alone as to the selected plaintiffs' time and efforts is insufficient.

Third, the proposed Notice of Settlement is deficient. Although the proposed notice mentions the Administrator's website, it does not have a section reserved for the website to be inserted. For example, the last page of the proposed notice includes a line for the Administrator's email address, mailing address, and telephone number, but there is no line reserved for the Administrator's website.

Accordingly, the court denies the motion for preliminary approval of class action and PAGA settlement, without prejudice.

23CV-03479 Diana Contreras Rodriguez vs.LE HOMES, et al

Motion to Be Relieved As Counsel

The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.

Counsel failed to use mandatory form MC-052 for the attorney declaration. (See Rules of Court, rule 3.1362.)

Counsel is able to refile the motion using the correct mandatory forms.

23CV-04368 Tony Borba, et al. vs County of Merced, et al.

Objection to Report of Discovery Dispute Conference Re Commencement of Depositions by Defendants

Appearance required.

25CV-00872 Virginia Allen vs Richard Vargas, Junior

Motion for Interlocutory Judgment for Partition by Sale

The motion for interlocutory judgment for partition by sale is DENIED WITHOUT PREJUDICE.

The Partition of Real Property Act applies to all partition actions where title to the property is held in tenancy in common, where no agreement exists binding all cotenants which governs the form of partition of the property, and the action was filed after January 1, 2023. (Code Civ. Proc. § 874.311.)

The court finds that sufficient evidence exists to make the threshold finding that title to the property at 9304 North Winton Way, Winton, California (the "Property") is held in tenancy in common by Plaintiff and Defendant. As a prima facie showing of the applicability of the PRPA has been made, subject to the merits of the case and defenses raised by both parties, this court must first comply with the terms of the PRPA before reaching the merits of the partition action.